



Genuine Student requirement

The Genuine Student (GS) requirement applies to student visa applications lodged on or after **23 March 2024**. We will assess applications lodged before this date under the **Genuine Temporary Entrant (GTE)** requirement.

All applicants for a student visa must:

- be a genuine applicant for entry and stay as a student
- be able to demonstrate an understanding that studying in Australia is the primary reason for applying for a student visa.

The GS requirement recognises that genuine students may develop skills Australia needs and may later choose to apply for permanent residence. Future intentions of this kind do not count against an applicant under GS.

To be granted a student visa, all applicants must demonstrate that they satisfy the GS criterion or the GS dependent criterion.

The online student visa application form asks the following to address the GS criteria.

- Give details of the applicant's current circumstances. This includes ties to family, community, employment and economic circumstances.
- Explain why the applicant wishes to study this course in Australia with this particular education provider. This must also explain their understanding of the requirements of the intended course and studying and living in Australia.
- Explain how completing the course will be of benefit to the applicant.
- Give details of any other relevant information the applicant would like to include.
- There is another question for applicants who have held a student visa or those applying in Australia from a non-student visa.

We prefer applicants to respond to the above questions in the application form rather than attaching a separate GS statement.

There is a text limit of 150 words per response.

All responses must be in English.

Along with the responses included in the application form, the applicant must attach supporting documents to their ImmiAccount.

We give more weight to statements supported by evidence in assessing the GS requirement.

We consider overall personal circumstances of the applicant to assess the genuine student requirement.

What evidence and information to include

We encourage applicants to give evidence or information about:

Previous study

This includes:

- academic transcripts showing qualifications achieved
- name of the education provider(s)
- length of study
- certificates of attainment.

Previous study in Australia

This includes:

- a complete history of study record(s) in Australia
- reasons for change of course and/or education providers
- details of information on course progress
- study gaps of more than 2 months during an academic year
- any other information the applicant considers relevant to their study record in Australia.

Current employment

This includes:

- details of their current employer and company address
- period of employment
- details of position held
- the name and contact details of someone who can confirm the circumstances of the declared employment.

Circumstances in their home country or country of residence

This includes:

- the nature of the applicant's personal ties e.g. family, community and employment. They must give reasons for not studying in their home country if a similar course is available.

Economic circumstances in home country or country of residence

This includes:

- documents showing employment or business activities for 12 months before lodging an application
- potential employment offers including salary and other benefits, after course completion
- income tax return or bank statements.

If there is political and civil unrest and military service commitments in the applicant's home country that would present as a significant incentive for them to leave their home country, they must give reasons and supporting evidence.

How we assess GS

The GS criterion focuses on the assessment of the student's intention to genuinely study in Australia. It considers factors including the applicant's:

- circumstances
- immigration history
- compliance with visa conditions and any other relevant matters.

This criterion acknowledges that post-study pathways are available for those who may be eligible.

Situations in their home country (or country of residence)

We consider:

- reasons for not studying in their home country or region if a similar course is available there
- the nature of the applicant's personal ties to their home country
- economic circumstances
- military service commitments political and civil unrest in their home country.

Potential situation in Australia

We consider:

- the level of knowledge of the proposed course, education provider and living in Australia
- previous study and qualifications
- the level of research the applicant has undertaken into their proposed course of study and living arrangements.

Value of the course to their future

We consider:

- if the course is consistent with their current level of education and if it will assist them to obtain employment or improve employment prospects in their home country or another country
- if the course is relevant to past or proposed future employment in their home country or another country
- expected salary and other benefits in their home country or another country obtained with the qualifications from the proposed course of study.

Immigration history

We consider:

- visa and travel history for Australia and other countries
- previous visa applications for Australia or other countries
- visa refusals or cancellations.

If the applicant is a minor, we consider the intentions of the parent, legal guardian or spouse.

Any other relevant matter

Give details of any other relevant information the applicant would like to include in their application.

For more information, refer to [Ministerial Direction No. 106 \(348KB PDF\) \(/Visa-subsite/files/direction-no-106.pdf\)](#).

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